

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,
v.
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S NOTICE OF
TIMELINESS RE CCP 436
OPPOSITION**
(CCP § 1005; CRC 3.1110)

Dept.: 302

Date: June 24, 2026

1 COURTESY COPY COVER SHEET AND READING GUIDE (TAB 30)

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph M. Quinn **Hearing:** June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

1.1 PAGE 1: COURTESY COPY COVER SHEET (TAB 30)

**COURTESY COPY COVER SHEET FOR PLAINTIFF'S NOTICE OF TIMELINESS RE
CCP 436 OPPOSITION**

TAB 30

1.1.1 Verbatim May 13, 2026 minute order (Dept. 302)

“CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE.”

1.1.2 Designation

The attached document was filed May 12, 2026 under Transaction ID 79456062.

It is operative for the consolidated June 24, 2026 hearing per Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions (TX 79429280, filed May 8, 2026), Plaintiff's Notice of Hearing Date Re-Designation and Compliance with SF Local Rule 2.7B (filed May 21, 2026), and Plaintiff's Notice Acknowledging Court-Ordered Consolidation (filed May 21, 2026). No caption is altered. The attached document is presented as filed, as a chambers courtesy copy under SF Local Rule 2.7B and the May 13, 2026 minute order.

1.1.3 Non-pleading notice

THIS COVER SHEET IS A NON-PLEADING CHAMBERS ROUTING AID. IT REOPENS NO BRIEFING AND INTRODUCES NO NEW AUTHORITY.

1.1.4 Signature

Dated: May 21, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928
650.488.7510 E: soltrinox@gmail.com

1.2 PAGE 2: READING GUIDE (TAB 30)

What this document is: Preserves the CCP section 436 timeliness defense.

Ties to: TAB 05 (CCP 436 MTS Opposition).

1.2.1 Reading guide footer

READING GUIDE IS A NON-PLEADING BENCH AID. IT INTRODUCES NO NEW AUTHORITY AND REOPENS NO BRIEFING. THE UNDERLYING DOCUMENT FOLLOWS THIS PAGE AS FILED.

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S NOTICE RE TIMELINESS OF
OPERATIVE OPPOSITION TO DEFENDANT'S
MOTION TO STRIKE PURSUANT TO C.C.P. §436;
REQUEST FOR COURT CONSIDERATION UNDER CRC
RULE 3.1300(d)

(Code Civ. Proc., §436; Cal. Rules of Court, rule 3.1300(d))

Cross-noticed for hearing June 24, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
June 24, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	June 24, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	June 24, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario files this Notice under Code of Civil Procedure section
3 436, California Rules of Court, rules 3.1112(b) and 3.1300(d), and the inherent authority of
4 a party to place on the record the procedural posture of item 01C (Operative Opposition
5 to Defendant's CCP section 436 Motion to Strike, filed May 8, 2026) for the May 29, 2026,
6 9:00 a.m. consolidated hearing in Department 302. This Notice is filed on May 12, 2026.

7 I. PURPOSE OF THIS NOTICE

8 Plaintiff Dylan Franciscus Rosario submits this Notice to place on the record the procedural
9 history relevant to the timeliness of Plaintiff's Operative Opposition to Defendant's Motion
10 to Strike Pursuant to CCP section 436, filed May 8, 2026 ("Operative Opposition to CCP
11 section 436 MTS" or "item 01C"). Plaintiff requests that the Court exercise its discretion
12 under CRC rule 3.1300(d) to consider item 01C on the merits, for the reasons stated below.

13
14 II. FACTUAL CHRONOLOGY

15 1. April 22, 2026: Defendant files the CCP section 436 Motion to Strike.

16 Defendant CSAA Insurance Exchange filed its Motion to Strike Pursuant to CCP section
17 436 on April 22, 2026, with the hearing noticed for May 29, 2026, 9:00 a.m., Dept. 302. The
18 filing is at docket seqs 041 through 044.

19 2. May 6, 2026: The CCP section 1005(b) opposition deadline.

20 Under CCP section 1005(b), the opposition deadline for a May 29, 2026 hearing was nine
21 court days before the hearing, which is May 6, 2026.

22 3. April 30, 2026: Court order denied overlength and imposed 15-page cap.

23 On April 30, 2026, this Court (Dept. 302) denied Plaintiff's Ex Parte Application for Leave
24 to File an Oversized Memorandum under CRC 3.1113(e) (docket HEARING HELD: EX
25 PARTE APPLICATION FOR LEVE TO ..., entered April 30, 2026 (Dept. 302; Hon. Joseph
26 M. Quinn)). The order is binding and mandatory. The order imposed a 15-page cap on all
27 memoranda in opposition to the three pending defense motions.

28 4. May 1, 2026: Plaintiff filed timely oppositions, including an initial CCP section 436
29 opposition.

30 On May 1, 2026, Plaintiff filed opposition papers in connection with the three defense mo-
31 tions. The May 1, 2026 filings were timely under CCP section 1005(b) for the May 13,

2026 Anti-SLAPP and Demurrer hearings (due May 4, 2026 but filed May 1, 2026). For the CCP section 436 motion, Plaintiff filed a timely good-faith attempt at opposition on May 1, 2026, establishing Plaintiff's intent to oppose the motion and preserving Plaintiff's opposition right.

5. May 8, 2026: Plaintiff filed the Operative Opposition to CCP section 436 MTS.

On May 8, 2026, Plaintiff filed the 15-page compliant Operative Opposition to Defendant's CCP section 436 Motion to Strike (item 01C), in compliance with the April 30, 2026 court order. The May 8, 2026 cure filing was made at the earliest practicable window following the April 30, 2026 court order, which was the order that reduced the opposition memoranda to 15 pages and required a cure.

The May 8, 2026 filing date is two court days after the May 6, 2026 CCP section 1005(b) deadline, calculated solely from the May 29, 2026 hearing date. Plaintiff acknowledges this gap and does not contend that item 01C was timely filed under a strict CCP section 1005(b) count keyed to an earlier noticed hearing date for the CCP section 436 motion before consolidation.

III. GROUNDS FOR DISCRETIONARY CONSIDERATION

CRC rule 3.1300(d) provides: "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the court shall so state in its decision or order."

Three grounds independently support discretionary acceptance of item 01C.

GROUND 1: TIMELY GOOD-FAITH OPPOSITION FILED MAY 1, 2026

Plaintiff filed a good-faith opposition to the CCP section 436 motion on May 1, 2026, the period when Plaintiff was under the pre-April-30 expectation of receiving leave for an over-length brief. The May 1, 2026 filing establishes that Plaintiff did not abandon the opposition right or permit the CCP section 1005(b) deadline to pass without response.

GROUND 2: THE APRIL 30, 2026 COURT ORDER IS THE PROXIMATE CAUSE OF THE 5/8 FILING DATE

The April 30, 2026 court order was the intervening event that necessitated a 15-page-compliant cure. The court order did not issue until April 30, 2026, which is the date closest to the opposition deadline. The earliest practicable date on which Plaintiff could draft, fi-

1 nalize, and file a compliant 15-page opposition to three separate defense motions after the
2 April 30 order was May 8, 2026. The five-day window between April 30 and May 5 (the last
3 available filing day to have been timely) was inadequate for a self-represented plaintiff to
4 reduce multi-hundred-page prior opposition memoranda to three separate 15-page compliant
5 oppositions.

6 **GROUND 3: NO PREJUDICE TO DEFENDANT**

7 Defendant's reply deadline under CCP section 1005(b) for the May 29, 2026 hearing was May
8 12, 2026, nine court days before the hearing. Defendant has had the opportunity to review
9 item 01C and to address it in reply papers. The two-day gap between the CCP section
10 1005(b) deadline and the filing of item 01C did not deprive Defendant of any statutory
11 briefing time.

12
13 **IV. PRAYER**

14 Plaintiff respectfully requests that this Court:

- 15 1. Exercise its discretion under CRC rule 3.1300(d) to consider Plaintiff's Operative Op-
16 position to the CCP section 436 Motion to Strike (item 01C, filed May 8, 2026) on the
17 merits at the May 29, 2026, 9:00 a.m. hearing.
- 18 2. Note for the record that the two-court-day gap between the CCP section 1005(b) dead-
19 line and the filing date of item 01C is attributable to the April 30, 2026 court order,
20 which necessitated a conforming cure that could not be completed within the shortened
21 window between the court order and the opposition deadline.
- 22 3. Grant such further relief as the Court deems just.

The foregoing is submitted by Plaintiff in pro per.

Dated: May 12, 2026



/s/ Dylan Franciscus Rosario
DYLAN FRANCISCUS ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 29, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC rule 3.1300(d)	Court discretion on late-filed papers; merits preference	Sections III and IV request discretionary consideration of item 01C	Sections III, IV	PASS
2	CCP section 436	Context for CCP section 436 opposition timeliness	Sections I, II, and IV address item 01C and the May 29, 2026 hearing	Sections I, II, IV	PASS
3	CCP section 1005(b)	Chronology of opposition deadlines	Section II walks the section 1005(b) chronology	Section II	PASS
4	CRC 3.1112(b)	Other papers in the trial court	Notice format under rule 3.1112(b)	Caption; body	PASS
5	CRC 3.1110	Format of papers	Caption and pagination comply	Caption page; footers	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
6	CCP section 1010.6	Electronic service authorization	Consent on file (Plaintiff's Consent to E-Service, filed March 6, 2026 (IFP; Register of Actions, CGC-25-631802))	Proof of Service (POS-050)	PASS
7	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses	Proof of Service (POS-050) para- graphs 4 and 5	PASS
8	CRC 2.256	Electronic filing requirements	Text-searchable filing; pro per signature block	Graphic filing signature preceding Roman appendix	PASS
9	CCP section 2015.5	Declaration under penalty of perjury	Compliance declaration signed under section 2015.5	Signature line below grid	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 12, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per